

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Liliana Manuel	Team: Squad #03	CCRB Case #: 201500058	☐ Force ☐ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Saturday, 01/03/2015 3:15 PM	Location of Incident: § 87(2)(b)	18 Mo. SOL 7/3/2016	Precinct: 111
Date/Time CV Reported Mon, 01/05/2015 12:04 AM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Mon, 01/05/2015 12:04 AM

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POM Michael Dimambro	01455	948895	111 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Miguel Mora	19490	953136	111 PCT
2. SGT Sharon Robinsonhewitt	4482	927429	111 PCT
3. An officer			

Officer(s)	Allegation	Investigator Recommendation
A . POM Michael Dimambro	Abuse: PO Michael Dimambro threatened to arrest § 87(2)(b)	A . Complainant Uncooperative
B . POM Michael Dimambro	Abuse: PO Michael Dimambro refused to provide his shield number to § 87(2)(b)	B . Complainant Uncooperative

Case Summary

On January 5, 2015, § 87(2)(b) filed the following CCRB complaint via the online website. On January 3, 2015, § 87(2)(b) received a phone call from the manager of Dunkin Donuts on Northern Boulevard in Queens, requesting that he tow a car. § 87(2)(b) drove his tow truck to Dunkin Donuts with his son, § 87(2)(b). Once he attached the vehicle to his truck, the owner of the vehicle ran out of a nearby Verizon store and became irate. § 87(2)(b) called 911. PO Michael Dimambro and PO Miguel Mora of the 111th Precinct responded shortly thereafter. PO Dimambro requested a sergeant. Sgt Sharon Robinsonhewitt and her unidentified partner arrived. PO Dimambro would not allow § 87(2)(b) to tow the vehicle, and would not allow the owner of the vehicle to pay § 87(2)(b) the fee, which is a required payment in lieu of the car being towed. PO Dimambro threatened to arrest § 87(2)(b) if he did not release the vehicle multiple **(Allegation A)**. PO Dimambro provided his name to § 87(2)(b) but refused to provide his shield number **(Allegation B)**.

Several attempts were made to obtain a sworn statement from § 87(2)(b). On January 7, 2015, a call was made to § 87(2)(b) during which he provided a telephone statement and scheduled an interview for January 13, 2015. On January 13, 2015, § 87(2)(b) contacted the CCRB and cancelled his appointment. A second call was made to § 87(2)(b) on January 14, 2015, during which his interview was rescheduled for January 21, 2015. On January 21, 2015, § 87(2)(b) failed to appear to his appointment and did not contact the CCRB in advance to cancel or reschedule. Between the dates of January 23, 2015, and January 29, 2015, three additional calls were made to § 87(2)(b). A voicemail was left for each call. Letters were sent to § 87(2)(b) on January 14, 2015, January 23, 2015, and January 27, 2015. No letters were returned to the CCRB by the U.S. Postal Service. An email was sent on January 27, 2015, but was returned as undeliverable. Searches of the Department of Correction for New York City and New York State confirmed that § 87(2)(b) is not incarcerated.

§ 87(2)(g)

§ 87(2)(b) it is recommended that this case be closed as
Complainant Uncooperative.

Pod: _____

Investigator: _____
Signature Print Date

Supervisor: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date

Reviewer: _____

Title/Signature

Print

Date